

Indian Health Service (IHS) Digital Imaging System – Supai Clinic

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in Subpart 12.6, as supplemented with additional information in this notice. This announcement constitutes the only solicitation; quotes are being requested and a written solicitation will not be issued.

Solicitation #IHS1524217 and this notice is issued as a Request for Quotation (RFQ). This is a combined synopsis/solicitation for commercial commodities/services. Submit written quotes only, oral offers will not be accepted. All firms or individuals responding must be registered with the System for Award Management (SAM).

This requirement is under North American Industrial Classification Standard (NAICS) codes: 339112. PSC 6515. This requirement is a **100% Small Business set-aside on SAM.GOV**. **Offerors that do not fall into this category will not be considered for award.**

REQUIREMENTS: Indian Health Service (IHS) – Phoenix Area Office (PAO), 40 North Central Ave., Phoenix, Arizona 85004-4424 has the requirement:

Blanket Purchase Agreement (5 years)

Biomedical parts and supplies on an as needed basis

See attached documents for details

Items are to be shipped FOB Destination. Shipping cost must be included in the vendor quote. It cannot be a separate line item.

The Government will not split this requirement. Quotes must include all aspects of this RFQ – all equipment, services, and options (if applicable)

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This procurement is for NEW Equipment ONLY; no remanufactured or "gray market" items. Vendor shall be an Original Equipment Manufacturer (OEM authorized dealer, authorized distributor or authorized reseller for the proposed equipment/system such that OEM warranty and service are provided and maintained by the OEM. All, warranty and service associated with the equipment shall be in accordance with the OEM terms and conditions. All Equipment must be covered by the manufacturer's warranty. The quote MUST include a copy of the authorized distributor letter from the manufacturer to verify the vendor quoting this combined synopsis/solicitation is an authorized distributor of the products being quoted. Third Party quotes will not be considered.

Delivery LOCATION:

Phoenix Indian Medical Center
4212 N. 16th Street
Phoenix, AZ 85016

Payment and Invoicing Instructions:

Invoices shall be prepared monthly with the following information CLEARLY identified on the invoice:

1. Invoice Date and Number
2. Contract Number
3. Charges for service or products identified BY LINE ITEM Number
4. Brief description of products or services rendered
5. Charges should follow line item structure. Quantity, Unit of Issue, Unit Price and total amount as applicable
6. Date of shipment

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Invoices shall be prepared and submitted electronically and in accordance with rates and terms as stated in the contract. Invoices should be sent electronically to the following departments and addresses in the same e-mail:

INVOICING PROCESSING PLATFORM (IPP)

In compliance with the Office of Management and Budget (OMB) M-15-19 memorandum "Improving Government Efficiency and Saving Taxpayer Dollars through Electronic Invoicing" directing Federal agencies to adopt electronic invoicing as the primary means to disburse payment to vendors. Invoices submitted under any award resulting from this solicitation will be required to utilize the Invoice Processing Platform (IPP) in accordance with HHSAR 352.232-71, Electronic Submission and Processing of Payment Requests"

IPP is a secure, web-based electronic invoicing system provided by the U.S. Department of the Treasury's Bureau of the Fiscal Service, in partnership with the Federal Reserve Bank of St. Louis (FRSTL). Respondents to this solicitation are encouraged to register an account with IPP if they have not already done so. If your organization is already registered to use IPP, you will not be required to re-register- however, we encourage you make sure your organization and designated IPP user accounts are valid and up to date.

The IPP website address is: <https://www.ipp.gov>

If you require assistance registering or IPP account access, please contact the IPP Helpdesk at (866) 973-3131 (M-F 8AM to 6PM ET), or IPPCustomerSupport@fiscal.treasury.gov

Note: Should an Offeror feel that use of the IPP would be unduly burdensome, the response to this solicitation should include an explanation of this position for a determination by the contracting officer.

QUOTE DUE DATE: 05/14/2026 5:00 PM EDT

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This combined synopsis/solicitation for products as defined herein. The government intends to award a purchase order as a result of this combined synopsis/solicitation to the responsive and responsible vendor whose conforming response is determined to provide the lowest price technically acceptable to the Government, price and other factors considered.

This combined synopsis/solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular FAC 2020-05 dated 03-30-2020.

The provision at FAR 52.212-1, Instructions to Offerors - Commercial, applies to this solicitation.

The full text of FAR provisions or clauses may be accessed electronically at <http://acquisition.gov/comp/far/index.html>.

The following solicitation provisions apply to this acquisition:

FAR 52.212-1, Instructions to Offerors Commercial Items JAN 2017

FAR 52.212-3, Offerors Representations and Certifications Commercial Items NOV 2017

Offerors must complete annual representations and certifications on-line at <http://www.SAM.gov> in accordance with FAR 52.212-3, Offerors Representations and Certifications Commercial Items. If paragraph (j) of the provision is applicable, a written submission is required.

CLAUSES INCORPORATED BY REFERENCE:

The following provisions and clauses shall apply to this solicitation: 52.252-2 Clauses Incorporated by Reference. This contract incorporates one or more clauses by reference, with the same force

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and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far/> (FAR) and (HISR);

52.212-1 Instructions to Offerors – Commercial Items (OCT 2015)

52.212-3 Offeror Representations and Certification - Commercial Items (MAR 2016);

52.212-4 Contract Terms and Conditions Commercial Items (MAY 2015);

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders
Commercial Items (MAR 2016);

52.217-5 Evaluation of Options (JULY 1990);

52.217-8 Option to Extend Services (NOV 1999);

52.217-9 Option to Extend the Term of the Contract (MAR 2000);

52.222-3 Convict Labor (JUN 2003);

52.222-21 Prohibition of Segregated Facilities (APR 2015);

52.222-26 Equal Opportunity (APR 2015);

52.222-36 Equal Opportunity For Workers With Disabilities (JUL 2014);

52.222-41 Service Contract Labor Standards (MAY 2014);

52.225-1 Buy American Act – Supplies (FEB 2009);

52.225-13 Restrictions on Certain Foreign Purchases (JUN 2008);

52.232-33 Payment by Electronic Funds Transfer – System for Award Management (JUL 2013)
(31 U.S.C. 3332);

52.232-34 Payment by Electronic Funds Transfer – Other than System for Award Management
(MAY 1999);

52.233-2 Service of Protest (SEP 2006)

52.252-1 Solicitation Provisions Incorporated by Reference

52.204-7 System for Award Management (JUL 2013);

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13.5 ADDENDUM – ADDENDUM to FAR 52.212-5 Instructions to Offerors – Commercial Items
Sub-Part 13.5 Simplified Procedures for Certain Commercial Items

CLAUSES INCORPORATED BY FULL TEXT:

52.212-2 – Evaluation – Commercial Items (Oct 2014)

The provision at FAR 52.212-1, Instructions to offerors - Commercial, applies to this solicitation.

The Government may also consider information obtained through other sources. Past performance information will be utilized to determine the probability of success relative to the required effort.

Relevant Past Performance evaluation via Past Performance Information Retrieval System (PPIRS). PPIRS records for the identified contract will be assessed and other records within PPIRS may be considered. No submission is required for this section.

PRICING: Price will be evaluated in whole, including all service options (if applicable) and optional accessories quoted.

FAR 52.212-2, Evaluation – Commercial Items.

(a) Evaluation procedures will be IAW FAR 13.106. The Government will select the quote that represents the best benefit to the Government at a price that can be determined reasonable.

Technical solution will consist of the following:

-  Price
-  Technical Acceptance of Product
-  Delivery

Past performance consists of PPIRS and FAPIIS data and relevant past performance. For price, all line items will be evaluated together as a total contract value.

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(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement **(if applicable)**. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

52.212-4 -- Contract Terms and Conditions -- Commercial Items. (Oct 2018).

52.212-5 -- Contract Terms and Conditions Required to Implement Statutes or Executive Orders -- Commercial Items (May2019)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(3) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)

(4) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(5) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77, 108-78 (19 U.S.C. 3805 note)).

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(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the contracting officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

[Contracting Officer check as appropriate.]

X (4) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Oct 2018) (Pub. L. 109-282) (31 U.S.C. 6101 note).

X (6) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (7) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (8) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Oct 2015) (31 U.S.C. 6101 note).

X (9) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

X (14) (i) 52.219-6, Notice of Total Small Business Aside (Nov 2011) (15 U.S.C. 644).

X (19) 52.219-14, Limitations on Subcontracting (Jan 2017) (15 U.S.C. 637(a)(14)).

X (20) 52.219-16, Liquidated Damages—Subcontracting Plan (Jan 1999) (15 U.S.C. 637(d)(4)(F)(i)).

X (22) 52.219-28, Post Award Small Business Program Rerepresentation (Jul 2013) (15 U.S.C. 632(a)(2)).

___ (24) 52.219-30, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Dec 2015) (15 U.S.C. 637(m)).

X (25) 52.222-3, Convict Labor (June 2003) (E.O. 11755).

X (26) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (Jan 2018) (E.O. 13126).

X (29) (i) 52.222-35, Equal Opportunity for Veterans (Oct 2015) (38 U.S.C. 4212).

X (30) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jul 2014) (29 U.S.C. 793).

X (32) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

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X (33) (i) 52.222-50, Combating Trafficking in Persons (JAN 2019) (22 U.S.C. chapter 78 and E.O. 13627).

X (ii) Alternate I (Mar 2015) of 52.222-50, (22 U.S.C. chapter 78 and E.O. 13627).

X (34) 52.222-54, Employment Eligibility Verification (Oct 2015). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial items as prescribed in 22.1803.)

X (42) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging while Driving (Aug 2011) (E.O. 13513).

X (49) 52.225-13, Restrictions on Certain Foreign Purchases (June 2008) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

X (53) 52.232-29, Terms for Financing of Purchases of Commercial Items (Feb 2002) (41 U.S.C. 4505), 10 U.S.C. 2307(f)).

X (55) 52.232-33, Payment by Electronic Funds Transfer--System for Award Management (Oct 2018) (31 U.S.C. 3332).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or executive orders applicable to acquisitions of commercial items:

(d) Comptroller General Examination of Record The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, and does not contain the clause at 52.215-2, Audit and Records -- Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after

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any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c) and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Jan 2019) (41 U.S.C. 3509).

(ii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).

(iv) 52.219-8, Utilization of Small Business Concerns (Oct 2018) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds \$700,000 (\$1.5 million for construction of any public facility), the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(v) 52.222-17, Nondisplacement of Qualified Workers (May 2014) (E.O. 13495). Flow down required in accordance with paragraph (1) of FAR clause 52.222-17.

(vi) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(vii) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

(viii) 52.222-35, Equal Opportunity for Veterans (Oct 2019) (38 U.S.C. 4212).

(ix) 52.222-36, Equal Opportunity for Workers with Disabilities (Jul 2014) (29 U.S.C. 793).

(x) 52.222-37, Employment Reports on Veterans (Feb 2016) (38 U.S.C. 4212).

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(xi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xii) 52.222-41, Service Contract Labor Standards (Aug 2018), (41 U.S.C. chapter 67).

(xiii) (A) 52.222-50, Combating Trafficking in Persons (Jan 2019) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 E.O. 13627).

(xiv) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Requirements (May 2014) (41 U.S.C. chapter 67.)

(xv) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Requirements (May 2014) (41 U.S.C. chapter 67)

(xvi) 52.222-54, Employment Eligibility Verification (Oct 2015) (E. O. 12989).

(xvii) 52.222-55, Minimum Wages Under Executive Order 13658 (Dec 2015).

(xviii) 52.222-62, Paid sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

(xix) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xx) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

(xxi) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations. (May 2014) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) 52.247-64, Preference for Privately-Owned U.S. Flag Commercial Vessels (Feb 2006) (46 U.S.C. Appx 1241(b) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

52.252-1 – Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make

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their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://farsite.hill.af.mil/vffara.htm>

52.252-2 – Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<http://farsite.hill.af.mil/vffara.htm>

DEPT. OF HEALTH & HUMAN SERVICES ACQUISITION REGULATION (HHSAR) (48 CFR CHAPTER 3) CLAUSES (INCORPORATED BY REFERENCE):

No.	HHSAR Clause No.	Title and Date
352.203-70	Anti-Lobbying	DEC 2015
352.208-70	Printing and Duplication	DEC 2015
352.223-70	Safety and Health	DEC 2015
352.227-70	Publications and Publicity	DEC 2015
352.239-74	Electronic and Information Technology Accessibility	DEC 2015
352.232-71	Electronic Submission and Processing of payment requests	FEB 2022

Arizona State Taxes. The Department of Health and Human Services, Phoenix Indian Medical Center, is Tax Exempt under A.R.S.42-5063(C)(3)(a), A.R.S.42-5067(B)(1), A.R.S.42-5065(B)(2)(a), A.R.S.42-5066(B)(3) (a), A.R.S.42-5074(B)(8), A.R.S.42-5071(B)(2)(a), A.R.S.42-5061(A)(25)(a), and A.R.S.42-5159(A)(13)(a),(b),(c), State of Arizona Department of Revenue. (Copy of Certificate available upon request).